Non-Disclosure Agreement (NDA)

This Non-Disclosure Agreement ("Agreement") is entered into as of [Date] _____, by and between [Disclosing Party Name] _____of [Company Name/Address] _____ ("Disclosing Party") and [Receiving Party Name] _____ of [Company Name/Address] ("Receiving Party").

1. Purpose

The Disclosing Party intends to disclose certain confidential and proprietary information (the "Confidential Information") to the Receiving Party for the purpose of [briefly describe the reason for the disclosure, such as “evaluating a potential business relationship,” “exploring investment opportunities,” or “developing a new product”] (the "Purpose"). The Receiving Party agrees to use the Confidential Information only for the stated Purpose and not for any other purposes.

2. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" means all information disclosed by the Disclosing Party to the Receiving Party, either orally or in writing, which is designated as confidential or proprietary, or which should reasonably be understood to be confidential given the nature of the information or the circumstances of its disclosure. This includes, but is not limited to:

- Business plans, strategies, and marketing data;
- Financial information and projections;
- Product designs, specifications, and prototypes;
- Trade secrets, know-how, and intellectual property;
- Client lists, vendor information, and customer data;
- Any other proprietary information related to the Disclosing Party’s business.

3. Exclusions from Confidential Information

Confidential Information does not include information that: a. Was already known to the Receiving Party prior to disclosure by the Disclosing Party; b. Is or becomes publicly available through no fault of the Receiving Party; c. Is disclosed to the Receiving Party by a third party who has the legal right to disclose such information; d. Is independently developed by the Receiving Party without use of the Disclosing Party’s Confidential Information.

4. Obligations of the Receiving Party

The Receiving Party agrees to: a. Maintain the confidentiality of the Confidential Information and take reasonable steps to protect it from unauthorized disclosure; b. Not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party; c. Use the Confidential Information solely for the Purpose and not for any other purpose; d. Restrict access to the Confidential Information to those employees, agents, or representatives of the Receiving Party who need to know such information for the

Purpose, and ensure that such persons are bound by confidentiality obligations no less stringent than those contained in this Agreement.

5. Term and Return of Information

This Agreement will remain in effect for a period of [specify time period, such as "two (2) years"] from the date of disclosure of the Confidential Information. Upon the expiration of this Agreement or upon request by the Disclosing Party, the Receiving Party agrees to promptly return or destroy all materials containing Confidential Information, including any copies, notes, or summaries thereof.

6. No License or Ownership Rights

Nothing in this Agreement grants the Receiving Party any rights in or to the Confidential Information, including any intellectual property rights. The Confidential Information remains the exclusive property of the Disclosing Party.

7. Legal Remedies

The Receiving Party acknowledges that any unauthorized disclosure or use of the Confidential Information may cause irreparable harm to the Disclosing Party, and that the Disclosing Party is entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

8. No Obligation to Proceed

Neither party is under any obligation to proceed with any business relationship or transaction as a result of this Agreement. This Agreement does not create any agency, partnership, or joint venture between the parties.

9. Governing Law

This Agreement will be governed by and construed in accordance with the laws of [State/Country], without regard to its conflict of law principles.

10. Entire Agreement and Amendments

This Agreement constitutes the entire understanding between the parties with respect to the subject matter herein and supersedes all prior discussions, agreements, and understandings of any kind. Any amendments to this Agreement must be made in writing and signed by both parties.

11. Miscellaneous

a. **Severability:** If any provision of this Agreement is found to be unenforceable, the remainder of this Agreement will remain in full force and effect.
b. **Waiver:** The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

c. **Notices:** Any notices or communications required or permitted under this Agreement must be in writing and delivered to the respective parties at the addresses provided above.

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the date first above written.

[Disclosing Party Name] _____
[Title, Company] _____

[Receiving Party Name] _____
[Title, Company] _____